



Solutions Behavioral Consulting
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AGREEMENT FOR BEHAVIORAL INTERVENTION SERVICES

This Agreement for Behavioral Intervention Services (the “**Agreement**”), effective as of the Effective Date below, is made by and between SOLUTIONS BEHAVIORAL CONSULTING, LLC, an Ohio limited liability company with offices at 8536 Crow Dr., Suite 240, Macedonia, Ohio 44056 (“**SBC**”) and the school or school district named below (“**Client**”):

School or District (Client) Information			
Name (Exact Legal Name)		Type of Entity (grade, junior, high, public, private or charter school)	
Brecksville Broadview Heights City Schools		Public School District	
Street Address	City	State	Zip Code
6638 Mill Road	Brecksville	OH	44141
Telephone		Email	
440-740-4017		symsekg@bbhcsd.org	
Contact Name		Effective Date	
Gina Symsek. Director of Student Services		August 15,2020	

RECITALS

WHEREAS, SBC is in the business of developing and implementing scholastic behavioral intervention programs for children with autism or other special needs; and

WHEREAS, Client is engaged in the business of school education and desires to engage the services of SBC to assist its teachers and students in the area of behavioral intervention services (“**Project**”) and SBC is willing to provide such services.

In consideration of the mutual covenants and agreements hereinafter set forth, the parties agree as follows:

1. Definitions. Terms not otherwise defined in this Agreement shall have the following meanings:

"Confidential Information" means any information that is treated as confidential by a party, including but not limited to all non-public information about its business affairs, products or services, Intellectual Property Rights, trade secrets, third-party confidential information, and other sensitive or proprietary information, whether disclosed orally or in written, electronic, or other form or media, and whether or not marked, designated, or otherwise identified as "confidential". Confidential Information shall not

include information that: (a) is already known to the Receiving Party without restriction on use or disclosure prior to receipt of such information from the Disclosing Party; (b) is or becomes generally known by the public other than by breach of this Agreement by, or other wrongful act of, the Receiving Party; (c) is developed by the Receiving Party independently of, and without reference to, any Confidential Information of the Disclosing Party; or (d) is received by the Receiving Party from a third party who is not under any obligation to the Disclosing Party to maintain the confidentiality of such information.

"Deliverables" means all documents, work product, and other materials that are delivered to Client hereunder or prepared by or on behalf of SBC in the course of performing the Services, including any items identified as such in a Statement of Work.

"Disclosing Party" means a party that discloses Confidential Information under this Agreement.

"Intellectual Property Rights" means all (a) patents, patent disclosures, and inventions (whether patentable or not), (b) trademarks, service marks, trade dress, trade names, logos, corporate names, and domain names, together with all of the goodwill associated therewith, (c) copyrights and copyrightable works (including computer programs), and rights in data and databases, (d) trade secrets, know-how, and other confidential information, and (e) all other intellectual property rights, in each case whether registered or unregistered and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection in any part of the world.

"Law" means any statute, law, ordinance, regulation, rule, code, order, constitution, treaty, common law, judgment, decree, other requirement, or rule of law of any federal, state, local, or foreign government or political subdivision thereof, or any arbitrator, court, or tribunal of competent jurisdiction.

"Losses" mean all losses, damages, liabilities, deficiencies, actions, judgments, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees and the cost of enforcing any right to indemnification hereunder and the cost of pursuing any insurance providers.

"Pre-Existing Materials" means the pre-existing materials specified in a Statement of Work and all documents, data, know-how, methodologies, software, and other materials, provided by or used by SBC in connection with performing the Services, in each case developed or acquired by the SBC prior to the commencement or independently of this Agreement.

"Receiving Party" means a party that receives or acquires Confidential Information directly or indirectly under this Agreement.

2. **Services.** SBC shall provide Client consultation services (the **"Services"**) to enable Client to implement Applied Behavior Analysis (**"ABA"**) therapy solutions. Services may include ABA training for staff, staff observations and on-going development, behavioral programming and assessment for individual students, functional behavior assessment, and bi-weekly meetings as more specifically described in each Statement of Work. The initial Statement of Work is attached as **Schedule 1**, and each and every subsequent Statement of Work shall be added to **Schedule 1** and be made a part of this Agreement.

3. **Evaluation Methods, Availability, and Third Party Services.** In providing the Services, SBC may employ, and Client consents to, SBC's use of the following:

- (a) *Direct Observation.* Direct clinical observation of the staff or student in the environment where behavioral intervention is needed or may be needed such as the academic environment, transition environment or any such other environment where the student exhibits inappropriate behavior;
- (b) *Video Review.* Video review of Client staff and/or student in the environment where the staff/student exhibit the need for skill development with appropriate release forms to be provided by Client; and/or
- (c) *Materials Review.* Review of assessment materials used by Client, its agents or employees for the student in the environment where the student exhibits inappropriate behavior.

SBC, in SBC's sole discretion, shall determine which, if any, of the above-described evaluation methods or other professional evaluation methods shall be utilized in providing its Services to Client and Client's students and faculty.

Client shall make available to SBC such information, materials, and access to Client's personnel and records related to the Services, as SBC may reasonably request in connection with SBC's performance of the Services.

Upon Client's prior written approval, and to the extent reasonably necessary to enable SBC to perform the Services, SBC shall be authorized to engage the services of independent contractors, agents or assistants and may further employ, engage or retain the services of any other persons to aid or assist in the proper performance of the Services. Any charges for the services of independent contractors, agents, assistants or other persons assisting SBC shall be paid by Client upon receipt of SBC's invoice for such third party services.

4. Statements of Work. Each Statement of Work shall include the following information, as applicable and as mutually agreed between SBC and Client:

- (a) a detailed description of the Services to be performed pursuant to the Statement of Work;
- (b) the date upon which the Services will commence and the term of such Statement of Work;
- (c) the names of the SBC contract manager and any key personnel to perform the Services;
- (d) the fees to be paid to SBC under the Statement of Work;
- (e) the Project implementation plan, including a timetable;
- (f) Project Milestones and payment schedules;
- (g) any criteria for completion of the Services or Project; and
- (h) such other terms and conditions agreed upon by the parties in connection with the Services to be performed pursuant to such Statement of Work.

5. Change Orders. If either party wishes to change the scope or performance of the Services in any Statement of Work, it shall submit details of the requested change to the other party in writing. SBC

shall, within a reasonable time (not to exceed 10 days) after receiving a Client-initiated request, or at the same time that SBC initiates such a request, provide a written estimate to Client of:

- (a) the likely time required to implement the change;
- (b) any necessary variations to the fees and other charges for the Services arising from the change;
- (c) the likely effect of the change on the Services; and
- (d) any other impact the change might have on the performance of this Agreement.

Promptly after receipt of the written estimate, the parties shall negotiate and agree in writing on the terms of such change (a "**Change Order**"). Neither party shall be bound by any Change Order unless mutually agreed upon in writing.

6. Client's Obligations. Client shall:

- (a) cooperate with SBC in all matters relating to the Project and Services and appoint a Client employee to serve as the primary contact with respect to this Agreement and who will have the authority to act on behalf of Client with respect to matters pertaining to this Agreement;
- (b) provide such access to Client's premises and such office accommodation and other facilities as may reasonably be requested by SBC and agreed with Client for the purposes of performing the Services;
- (c) provide such equipment as may be required by SBC to perform the Services;
- (d) make available to SBC for the purpose of rendering the Services, upon request from SBC, any and all records, documents or other items or matter pertaining to the student who is the subject of the Services;
- (e) make available to SBC any and all staff or personnel of Client whom SBC may deem necessary for purposes of rendering the Services;
- (f) respond promptly to any SBC request to provide direction, information, approvals, authorizations, or decisions that are reasonably necessary for SBC to perform Services in accordance with the requirements of this Agreement;
- (g) provide such information as SBC may reasonably request and Client considers reasonably necessary, in order to carry out the Services, in a timely manner, and ensure that such information is complete and accurate in all material respects;
- (h) obtain and maintain throughout the Term all necessary licenses and consents and comply with all applicable Law in relation to the Services to the extent that such licenses, consents, and Law relate to Client's business, premises, staff, students, and equipment; and
- (i) pay all costs of, including the costs of any materials, supplies or other things required for the Services.

If SBC's performance of its obligations under this Agreement is prevented or delayed by any act or omission of Client or its agents, subcontractors, consultants, or employees outside of SBC's

reasonable control, SBC shall not be deemed in breach of its obligations under this Agreement or otherwise liable for any costs, charges, or losses sustained or incurred by Client, in each case, to the extent arising directly or indirectly from such prevention or delay.

7. SBC's Obligations. SBC shall:

- (a) designate an SBC employee to serve as a primary contact with respect to this Agreement and any Statement of Work who will have the authority to act on behalf of SBC in connection with matters pertaining to the Services and such SBC personnel, in SBC's sole discretion and professional judgment, who shall be suitably skilled, experienced, and qualified to perform the Services;
- (b) before the date on which Services are to start, obtain, and at all times during the Term of this Agreement maintain, all necessary licenses and consents and comply with all relevant Laws applicable to the provision of the Services;
- (c) prior to any SBC personnel performing any Services: (i) ensure that such SBC personnel have the legal right to work in the United States; and (ii) conduct background checks on such SBC personnel, which background checks shall comprise, at a minimum, a criminal record, in accordance with Law;
- (d) comply with, and ensure that all SBC personnel comply with, all rules, regulations, and policies of Client that are communicated to SBC in writing, including security procedures concerning systems and data and remote access thereto, building security procedures, and general health and safety practices and procedures;
- (e) maintain complete and accurate records relating to the provision of the Services; and
- (f) be responsible for all SBC personnel and for the payment of their compensation, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments, and disability benefits.

8. Term and Termination.

- (g) *Term.* This Agreement shall commence as of the Effective Date and shall continue thereafter until the completion of the Services under all Statements of Work unless sooner terminated pursuant to this Section 8 (the "**Term**").
- (h) *Termination for Convenience.* Either party, in its sole discretion, may terminate this Agreement or any Statement of Work, in whole or in part, at any time without cause, by providing at least 30 days' prior written notice to the other party.
- (i) *Termination for Cause.* Either party may terminate this Agreement or any Statement of Work, effective upon written notice to the other party (the "**Defaulting Party**"), if the Defaulting Party breaches this Agreement, and such breach is incapable of cure, or with respect to a breach capable of cure, the Defaulting Party does not cure such breach within 30 days after receipt of written notice of such breach.

- (j) *Effects of Termination or Expiration.* Upon expiration or termination of this Agreement for any reason each party shall (i) return all materials of the other party; (ii) return to the other party all documents and tangible materials (and any copies) containing, reflecting, incorporating, or based on the other party's Confidential Information, (ii) permanently delete all of the other party's Confidential Information from its computer systems, and (iii) certify in writing to the other party that it has complied with the requirements of this clause; provided, however, that Client may retain copies of any Confidential Information to the extent necessary to allow it to make full use of the Services.
- (k) *No Liability for Termination.* In no event shall either party be liable for any personnel termination costs arising from the expiration or termination of this Agreement.

9. Fees and Expenses; Payment Terms.

- (a) In consideration of the provision of the Services by SBC, Client shall pay the fees set forth in the Statement of Work. Payment to SBC of such fees and the reimbursement of expenses pursuant to this Agreement shall constitute payment in full for the performance of the Services.
- (b) The fees payable for the Services shall be calculated in accordance with SBC's fee rates for the SBC personnel set forth in the applicable Statement of Work and Client shall reimburse SBC, at SBC's actual cost, for any materials, equipment, and third-party services (collectively, "**Materials**") reasonably necessary for the provision of the Services. SBC shall obtain Client's written consent prior to the purchase of all Materials which shall not be unreasonably withheld.
- (c) SBC shall issue invoices to Client monthly in arrears for its fees and the costs of Materials or as provided in the Statement of Work but in no event later than the fifth (5th) business day of each month.
- (d) Client agrees to reimburse SBC for all actual, documented, and reasonable travel and out-of-pocket expenses incurred by SBC in connection with, arising out of, or related to the Services. Without limiting the generality of the foregoing, in the event that SBC is required to appear on behalf of Client or any of Client's students, faculty, or personnel in connection with any required compliance with Law, Client shall reimburse SBC for all such expenses including a per diem rate not to exceed the maximum per diem rate charged by SBC to Client for any SBC personnel performing Services pursuant to any Statement of Work.
- (e) Client shall be responsible for all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any federal, state, or local governmental entity on any amounts payable by Client hereunder. Any such taxes, duties, and charges currently assessed or which may be assessed in the future, that are applicable to the Services are for the Client's account, and Client hereby agrees to pay such taxes; *provided, that*, in no event shall Client pay or be responsible for any taxes imposed on, or with respect to, SBC's income, revenues, gross receipts, personnel, or real or personal property or other assets.
- 10. Insurance.** At all times during the Term of this Agreement, SBC shall procure and maintain, at its sole cost and expense, at least the following types and amounts of insurance coverage:

- (a) Commercial General Liability with limits no less than \$1,000,000 per occurrence and \$3,000,000 in the aggregate, which policy will include contractual liability coverage insuring the activities of SBC under this Agreement;
- (b) Worker's Compensation with limits no less than the minimum amount required by applicable law;
- (c) Commercial Automobile Liability with limits no less than \$3,000,000 combined single limit; and
- (d) Errors and Omissions/Professional Liability with limits no less than \$1,000,000 per occurrence and \$3,000,000 in the aggregate.

11. Intellectual Property Rights; Ownership.

- (a) SBC and its licensors are, and shall remain, the sole and exclusive owners of all right, title, and interest in and to the Pre-Existing Materials, including all Intellectual Property Rights therein. SBC hereby grants Client a limited, irrevocable, perpetual, fully paid-up, royalty-free, non-transferable license to use any Pre-Existing Materials to the extent incorporated in, combined with or otherwise necessary for the use of the Deliverables. All other rights in and to the Pre-Existing Materials are expressly reserved by SBC.
- (b) Client is, and shall remain, the sole and exclusive owner of all right, title, and interest in and to the Client Materials, including all Intellectual Property Rights therein. SBC shall have no right or license to use any Client Materials except solely during the Term of the Agreement to the extent necessary to provide the Services to Client. All other rights in and to the Client Materials are expressly reserved by Client.

12. Confidential Information. The Receiving Party agrees:

- (a) not to disclose or otherwise make available Confidential Information of the Disclosing Party to any third party without the prior written consent of the Disclosing Party; provided, however, that the Receiving Party may disclose the Confidential Information of the Disclosing Party to its officers, employees, consultants, and legal advisors who have a "need to know", who have been apprised of this restriction, and who are themselves bound by nondisclosure obligations at least as restrictive as those set forth in this Section 12;
- (b) to use the Confidential Information of the Disclosing Party only for the purposes of performing its obligations under the Agreement or, in the case of Client, to make use of the Services and Deliverables; and
- (c) promptly to notify the Disclosing Party in the event it becomes aware of any loss or disclosure of any of the Confidential Information of Disclosing Party.

13. Representations and Warranties. Each party represents and warrants to the other party that:

- (a) it is duly organized, validly existing and in good standing as a corporation or other entity as represented herein under the laws and regulations of its jurisdiction of incorporation, organization, or chartering;

- (b) it has the full right, power, and authority to enter into this Agreement, to grant the rights and licenses granted hereunder, and to perform its obligations hereunder;
- (c) the execution of this Agreement by its representative whose signature is set forth at the end hereof has been duly authorized by all necessary corporate action of the party; and
- (d) when executed and delivered by such party, this Agreement will constitute the legal, valid, and binding obligation of such party, enforceable against such party in accordance with its terms.

EXCEPT FOR THE EXPRESS WARRANTIES IN THIS SECTION 13, (A) EACH PARTY HEREBY DISCLAIMS ALL WARRANTIES, EITHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE UNDER THIS AGREEMENT, AND (B) SBC SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

14. Liability. SBC shall not be liable to Client, or to any Person, for any Loss arising out of or related to SBC's performance of Services on the part of SBC unless the acts or omissions of SBC, its independent contractors, agents or assistants are the result of gross neglect or willful misconduct. Client shall indemnify and hold SBC harmless from any obligations, costs, claims, damages, judgments, attorney fees and attachments arising from or growing out of the Services rendered by SBC to Client or to student pursuant to the terms of this Agreement or in any way connected with the rendering of services by SBC pursuant to the terms of this Agreement.

15. Non-Solicitation. During the Term of this Agreement and for a period of 9 months thereafter, neither party shall, directly or indirectly, in any manner solicit or induce for employment any person who performed any work under this Agreement who is then in the employ of the other party. A general advertisement or notice of a job listing or opening or other similar general publication of a job search or availability to fill employment positions, including on the internet, shall not be construed as a solicitation or inducement for the purposes of this Section, and the hiring of any employee or independent contractor who freely responds thereto shall not be a breach. If either party breaches this Section 15, the breaching party shall, on demand, pay to the non-breaching party a sum equal to one year's basic salary or the annual fee that was payable by the claiming party to that employee, worker, or independent contractor plus the recruitment costs incurred by the non-breaching party in replacing such person.

16. Miscellaneous.

- (a) *Relationship.* The relationship between the parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise, employment, or fiduciary relationship between the parties, and neither party shall have authority to contract for or bind the other party in any manner whatsoever.
- (b) *Notices.* All notices, requests, consents, claims, demands, waivers, and other communications hereunder shall be in writing and shall be deemed to have been given (i) when delivered by hand (with written confirmation of receipt); (ii) when received by the addressee if sent by a nationally recognized overnight courier (receipt requested); (iii) on the date sent by email if sent during normal business hours of the recipient, and on the next business day if sent after normal business hours of the recipient; or (iv) on the third day after the date mailed, by certified or registered mail, return receipt requested, postage prepaid. Such communications must be sent to

the respective parties at the addresses first indicated above or such other address as the party may previously designate in writing.

- (c) *Entire Agreement.* This Agreement, together with all Statements of Work and any other documents incorporated herein by reference, constitutes the sole and entire agreement of the parties to this Agreement with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings and agreements, both written and oral, with respect to such subject matter. In the event of any conflict between the terms and provisions of this Agreement and those of any Statement of Work, the following order of precedence shall govern: (i) first, this Agreement and (ii) second, the applicable Statement of Work.
- (d) *Assignment.* Neither party may assign, transfer, or delegate any or all of its rights or obligations under this Agreement, including by operation of Law, without the prior written consent of the other party, which consent shall not be unreasonably withheld or delayed; provided, that, upon prior written notice to the other party, either party may assign the Agreement to a successor of all or substantially all of the assets of such party through merger, reorganization, consolidation, or acquisition. No assignment shall relieve the assigning party of any of its obligations hereunder. Any attempted assignment, transfer, or other conveyance in violation of the foregoing shall be null and void. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and permitted assigns.
- (e) *Headings.* The headings in this Agreement are for reference only and shall not affect the interpretation of this Agreement.
- (f) *Amendments/Waiver.* This Agreement may be amended, modified, or supplemented only by an agreement in writing signed by each party hereto. No waiver by any party of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by the party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any rights, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.
- (g) *Interpretation.* If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon such determination that any term or other provision is invalid, illegal, or unenforceable, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.
- (h) *Governing Law.* This Agreement shall be governed by and construed in accordance with the internal laws of the State of Ohio without giving effect to any choice or conflict of law provision or rule (whether of the State of Ohio or any other jurisdiction) that would cause the application of Laws of any jurisdiction other than those of the State of Ohio. Any legal suit, action, or proceeding arising out of [or related to] this Agreement or the Services provided hereunder shall be instituted exclusively in the federal courts of the United States or the courts of the State of Ohio in each case located in the City of Cleveland and County of Cuyahoga, and each party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding. Service

of process, summons, notice, or other document by mail to such party's address set forth herein shall be effective service of process for any suit, action, or other proceeding brought in any such court.

- (i) *Counterparts*. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Agreement delivered by email or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

EXECUTED at _____, Ohio, effective as of the Effective Date first above written.

CLIENT: _____

By: _____

SOLUTIONS BEHAVIORAL CONSULTING, LLC

By: _____
Jennifer Sweeney, Ph.D., BCBA-D, COBA CEO/Owner

Schedule 1 Statement of Work

Service

This Statement of Work ("**SOW**") is made pursuant to the Agreement for Behavioral Intervention Services ("**Agreement**") between SOLUTIONS BEHAVIORAL CONSULTING, LLC ("**SBC**") and the Client named in the Agreement ("**Client**"):

Interpretation

Unless otherwise stated within, the terms and provisions of the Agreement are incorporated by reference in this SOW and all capitalized terms used within and not otherwise defined shall have the meaning assigned in the Agreement.

This SOW establishes the framework for the activities to be performed in the proposed effort. The primary purpose of this SOW is to ensure that Client and SBC teams have a clear understanding of the Services to be performed and the work product to be delivered and to ensure that SBC and Client each:

- Have agreement on the purpose of the Project
- Have agreement on the approach that will be used during the Project
- Have agreement on the high-level scope of the Project
- Are mutually committed to the success of the Project

Project

SERVICES	ABA Consulting services - ABA training for staff, staff observations and on-going development, behavioral programming and assessment for individual students, functional behavior assessment and behavior intervention plan development, and bi-weekly feedback/consultation/training meetings
COMMENCEMENT DATE	August 15, 2020
SBC CONTRACT MANAGER AND KEY PERSONNEL	Dr. Jennifer Sweeney – Owner Dr. Jennifer Sweeney – Lead BCBA jsweeney@solutionsbehavioral.com Ashley Madonio – Practice Manager amadonio@solutionsbehavioral.com
FEES (Hourly Rates billed in ¼ hour increments)	\$150.00 per hour for consultation services (direct consultation hours, special assessments/reports-excluding consultation reports, emails longer than 15 minutes, phone calls longer than 15 minutes, data analysis). \$55.00 per hour for behavior technician services For drive time expenses, SBC shall be entitled to a fee payable in the amount of \$75 per round trip..

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